

3 & 4 GEO. 6. *The King Edward the Seventh* Ch. ix.
Welsh National Memorial Association Act, 1940.



CHAPTER ix.

An Act to make provision with respect to the war service of persons employed by the King Edward the Seventh Welsh National Memorial Association and for other purposes.

[25th April 1940.]

WHEREAS the King Edward the Seventh Welsh National Memorial Association (in this Act called "the Association") are a corporate body established by a royal charter which was granted by His late Majesty King George the Fifth on the seventeenth day of May nineteen hundred and twelve :

And whereas the affairs of the Association are regulated by the provisions of the said royal charter and of supplemental royal charters which were granted by His said late Majesty on the twelfth day of February nineteen hundred and seventeen and the first day of August nineteen hundred and twenty-three respectively and by an order of the Chancery Division of the High Court of Justice which is dated the fifteenth day of November nineteen hundred and thirty and also by The King Edward the Seventh Welsh National Memorial Association Act 1939 (in this Act referred to as "the Act of 1939") :

2 & 3 Geo. 6.
c. xxvii.

And whereas the principal objects of the Association as laid down in the said charters are the prevention

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and the eradication in Wales and the county of Monmouth of tuberculosis and other diseases and in particular the provision for the benefit of Wales and the said county of Monmouth of treatment either in sanatoria or other institutions or otherwise for persons suffering from tuberculosis or such other diseases as the Minister of Health and the Treasury may approve and (for the like benefit) the provision and equipment and maintenance of any such institutions and the promotion of researches and educative and preventive measures in relation to tuberculosis and any such diseases as aforesaid :

1 Edw. 8. &
 1 Geo. 6.
 c. 68.
 2 & 3 Geo. 6.
 c. 18.

And whereas by the Act of 1939 the provisions of the Local Government Superannuation Acts 1937 and 1939 were made applicable to the Association on the terms and conditions contained in that Act :

2 & 3 Geo. 6.
 c. 94.

And whereas it is expedient that certain of the provisions of the Military Training (Consequential Provisions) Order 1939 and the Reserve and Auxiliary Forces (Consequential Provisions) Order 1939 and of the Local Government Staffs (War Service) Act 1939 should be made applicable to the Association and to persons employed by them as is provided in this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
 collective
 titles.

1.—(1) This Act may be cited as *The King Edward the Seventh Welsh National Memorial Association Act 1940.*

(2) *The King Edward the Seventh Welsh National Memorial Association Act 1939* and this Act may be cited together as *The King Edward the Seventh Welsh National Memorial Association Acts 1939 and 1940.*

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2. In this Act unless the subject or context otherwise requires— Interpretation.

“the Association” means the King Edward the Seventh Welsh National Memorial Association acting through the council of the Association;

“the order of the court” means the order in the matter of the Association which is dated the fifteenth day of November nineteen hundred and thirty and made by the Chancery Division of the High Court of Justice;

“the court scheme” means the scheme referred to in the order of the court;

“the revenues of the Association” has the same meaning as in the court scheme and includes the contributions payable to the Association in pursuance of the scheme made by the Minister of Health under subsection (3) of section 102 of the Local Government Act 1929.

19 & 20
Geo. 5. c. 17.

3. The Military Training (Consequential Provisions) Order 1939 the Reserve and Auxiliary Forces (Consequential Provisions) Order 1939 and the Local Government Staffs (War Service) Act 1939 shall have effect and shall be deemed always to have had effect as if the Association were a local authority within the meaning thereof respectively.

Association
to be local
authority
for certain
purposes.

4.—(1) The Association shall have power (in addition and without prejudice to any other powers of borrowing which have been conferred upon them) to borrow at interest the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within a period of five years from the passing of this Act.

Power to
borrow.

(2) The provisions of the order of the court and of the court scheme shall with any necessary modifications apply to and in respect of any money borrowed by the Association in pursuance of this section as if the same were money borrowed in pursuance of the court scheme.

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Costs of
Act.

5. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Association out of the revenues of the Association or out of moneys to be borrowed under this Act for that purpose.

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